

Before the
FEDERAL MARITIME COMMISSION
Washington, DC 20573
Docket No. 22-20
MSRF Inc. v. HMM Company Limited

JOINT STATUS REPORT AND PROPOSED DISCOVERY SCHEDULE

Pursuant to the Commission’s Initial Order dated August 22, 2022 (“Initial Order”) and 46 C.F.R. § 502.141(h), Complainant MSRF, Inc. (“MSRF”) and Respondent HMM Company Limited (“HMM” and, collectively with MSRF, the “Parties”), by their respective undersigned counsel, have conferred and submit this joint status report and discovery schedule:

The Parties have already exchanged the initial disclosures required by 46 C.F.R. § 502.141(b). The Parties do not currently anticipate needing depositions or interrogatories in this case in excess of the amounts contemplated by 46 C.F.R. §§ 502.143 (*i.e.*, no more than 20 depositions) and 502.145 (*i.e.*, no more than 50 written interrogatories), respectively. Consistent with Paragraph 18 of the Initial Order, the Parties intend to agree and stipulate regarding the treatment of confidential treatment of information that is obtained during discovery that is not filed with the Commission.

The Parties propose the following discovery schedule:

<u>Event</u>	<u>Deadline</u>
Initial Disclosures	September 21, 2022
Initial requests for production (“RFP”) of documents and electronically stored information (“ESI”)	October 14, 2022
Complainant’s Notice of Expert Testimony	December 16, 2022
Complete Deposition of Fact Witnesses	December 16, 2022
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Respondent's Notice of Expert TestimonyJanuary 27, 2023

Last Day to Serve Interrogatories, Requests
for Admission, and Final RFPs.....January 11, 2023

Close of Discovery.....February 10, 2023

Pursuant to 26 C.F.R. § 502.64(a), the Parties have notified the Director of the Commission's Office of Consumer Affairs & Dispute Resolution Services ("CADRS") that they are not scheduling a mediation at this time. They have also notified the Director of CADRS that the Parties are open to mediation but have agreed that it is necessary to develop a factual record through discovery prior to mediation.

September 22, 2022

Respectfully submitted,

CLARK HILL PLC

COZEN O'CONNOR

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